

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #03	CCRB Case #: 201802613	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 03/19/2018 10:50 PM	Location of Incident: In front of 802 Nostrand Avenue; 71st Precinct stationhouse	18 Mo. SOL 9/19/2019	Precinct: 77
Date/Time CV Reported Wed, 04/04/2018 10:26 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/04/2018 10:26 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Viktoria Bibolova	12818	960248	071 PCT
2. POM Asim Karim	13733	956015	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anderson Thimote	16504	957399	071 PCT
2. POM Anson Lancaster	15549	930525	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Asim Karim	Abuse: In front of 802 Nostrand Avenue, Police Officer Asim Karim stopped § 87(2)(b)	A . Exonerated
B . POF Viktoria Bibolova	Abuse: In front of 802 Nostrand Avenue, Police Officer Viktoria Bibolova stopped § 87(2)(b)	B . Exonerated
C . POM Asim Karim	Discourtesy: At the 71st Precinct stationhouse, Police Officer Asim Karim spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Asim Karim	Abuse: At the 71st Precinct stationhouse, Police Officer Asim Karim did not obtain medical treatment for § 87(2)(b)	D . Unsubstantiated
E . POM Asim Karim	Abuse: At the 71st Precinct stationhouse, Police Officer Asim Karim threatened to remove § 87(2)(b) to the hospital.	E . Unsubstantiated
F . POF Viktoria Bibolova	Abuse: At the 71st Precinct stationhouse, Police Officer Viktoria Bibolova did not obtain medical treatment for § 87(2)(b)	F . Unsubstantiated

Case Summary

On April 4, 2018, § 87(2)(b) filed this complaint with the CCRB via telephone.

On March 19, 2018, § 87(2)(b) was walking in the vicinity of Nostrand Avenue and St. Johns Place in Brooklyn, when he was stopped by PO Asim Karim and PO Viktoria Bibolova, both of the 71st Precinct (**Allegation A and Allegation B: Abuse of Authority, exonerated**). PO Karim and PO Bibolova told § 87(2)(b) that he was being stopped in regards to an assault at Dunkin Donuts. § 87(2)(b) was subsequently positively identified by the victim of the assault in a show-up, and was arrested by PO Bibolova. § 87(2)(b) was transported to the 71st Precinct stationhouse by PO Anderson Thimote, and PO Anson Lancaster, and lodged in the holding cells. While in the holding cells, PO Karim allegedly said, “Oh, you want to beat up old men? What type of fucking guy are you?” to § 87(2)(b) and allegedly said that he did not have time to “fucking” babysit § 87(2)(b) (**Allegation C: Discourtesy, unsubstantiated**). § 87(2)(b) responded that he had a medical condition and wanted medical attention. PO Karim allegedly responded that he would “take care of it,” and walked away (**Allegation D: Abuse of Authority, unsubstantiated**). PO Karim allegedly told § 87(2)(b) that if he did not stop yelling, he would have ESU remove him to a mental facility (**Allegation E: Abuse of Authority, unsubstantiated**). § 87(2)(b) told PO Bibolova that he had medication he needed to take and that he wanted to go to the hospital, and she allegedly responded that she would “take care of it” (**Allegation F, Abuse of Authority, unsubstantiated**).

§ 87(2)(b) was arrested in regards to this incident, § 87(2)(a) 160.50. This arrest was subsequently voided.

The investigation obtained body worn camera footage and security camera footage of this incident. See the allegations below for corresponding footage.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Asim Karim stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Viktoria Bibolova stopped § 87(2)(b)

It is undisputed that PO Karim and PO Bibolova stopped § 87(2)(b) in front of 802 Nostrand Avenue in Brooklyn in regards to an assault that had taken place approximately ten minutes earlier at the Dunkin Donuts located at 542 Eastern Parkway in Brooklyn. It is further undisputed that § 87(2)(b) matched the description given, of a black male wearing all black and a black backpack, and was in the immediate vicinity of the aforementioned assault a short time after the assault took place.

§ 87(2)(b) (**01 Board Review**) stated that he had exited the 3-train subway station located at Nostrand Avenue and Eastern Parkway after going on a date. § 87(2)(b) was wearing jeans, a black jacket, a camouflage baseball hat, and a black backpack. After exiting the subway, § 87(2)(b) crossed Eastern Parkway and began walking northbound on the eastern side of Nostrand Avenue. § 87(2)(b) was speaking on his cell phone to his friend, § 87(2)(b) about his date, his work as a personal trainer, and boxing. § 87(2)(b) did not state that he had “fucked a guy up” while speaking on the telephone. § 87(2)(b) passed Lincoln Place, at which point he crossed Nostrand Avenue and continued walking northbound on Nostrand Avenue. When § 87(2)(b) crossed

Nostrand Avenue, he observed a male wearing a gray jacket walking in front of him, who was turning around frequently and looking behind him, in the direction of § 87(2)(b) § 87(2)(b) felt that the man was suspicious, and turned around to see what he was looking at. § 87(2)(b) observed PO Karim and PO Bibolova, and stopped walking. The male in the gray jacket walking in front of § 87(2)(b) kept walking and was not stopped. § 87(2)(b) felt that the officers were following him, and asked if they were. The officers responded that they were, and asked where he was coming from. § 87(2)(b) declined to answer the officers' question, and asked if he was being detained. The officers responded that he was being detained because of an assault that happened at Dunkin Donuts. PO Thimote and PO Lancaster arrived. § 87(2)(b) asked PO Karim what the description of the perpetrator was, and PO Karim responded that the perpetrator was wearing a black jacket and a black backpack. § 87(2)(b) responded that those items were widely worn. PO Karim went on the radio and asked the operator to read back the description. The operator stated that the perpetrator was wearing a black jacket and a black backpack. A couple of minutes later, an additional marked police car arrived, containing PO Adam Elmaadawy and Sgt. Joseph Naranjo. The victim of the assault was inside of the vehicle, and identified § 87(2)(b) as the perpetrator. § 87(2)(b) was handcuffed and transported to the 71st Precinct stationhouse.

§ 87(2)(g)

§ 87(2)(b) PO Karim and PO Bibolova responded to a radio run for an assault in progress at Dunkin Donuts. When they arrived at the location, they observed multiple units already present, so they decided to canvass for suspects in their vehicle instead of remaining on scene. The description that they were provided with was a black male, wearing all black, and a black backpack. There was very little vehicle or pedestrian traffic. PO Karim drove the wrong way on Nostrand Avenue at a slow speed, with the lights on. PO Karim circled around at Lincoln Place, Sterling Avenue, and St. Johns Avenue. PO Bibolova and PO Karim observed § 87(2)(b) walking alone northbound on Nostrand Avenue, approximately two blocks up from Eastern Parkway. § 87(2)(b) was a black male, and was wearing all black and a black backpack. § 87(2)(b) was the only individual they stopped while canvassing, and the only individual they observed who matched the description. § 87(2)(b) was speaking on the telephone, and PO Karim stated that he heard § 87(2)(b) say that he had, "fucked a guy up." PO Bibolova did not hear § 87(2)(b) make this statement, but PO Karim shared with her that he had heard it. In addition, § 87(2)(b) repeatedly looked back at the officers, further raising their suspicion of him.

PO Bibolova stated that at the time immediately following the assault, surveillance video inside of Dunkin Donuts capturing the assault was not available to the officers, because the manager was not working, and was not responsive to telephone calls requesting he come to the store. The following day on March 20, 2018, at 12:10 PM, PO Bibolova received a phone call from the manager at Dunkin Donuts that he was at the store. PO Bibolova returned to the Dunkin Donuts and viewed the video footage of the assault. PO Bibolova subsequently determined that § 87(2)(b) was not the suspect. § 87(2)(b)'s arrest was voided and he was released. PO Bibolova created a UF-250 to document the stop of § 87(2)(b) **(08 Board Review)**.

Body worn camera footage from PO Karim and PO Bibolova, who affected the stop together, is consistent with the statements of § 87(2)(b) PO Karim, and PO Bibolova. Body worn camera

footage from PO Karim (labeled below as Snagit1) **(13 Board Review)** shows the initial stop of

§ 87(2)(b)



Snagit 1.mp4

ICAD § 87(2)(b) **(09 Board Review)** reads that at 10:23 PM, a male caller reported that two males were fighting in the Dunkin Donuts at 540 Eastern Parkway. At 10:29 PM, the description was given for a black male, wearing all black with a black backpack and gray hair. At 10:34 PM, § 87(2)(b) was stopped in regards.

An officer may stop a person if he or she has a reasonable suspicion that the person has committed, is committing, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976) **(10 Board Review)**

An officer may stop an individual based on the contents of a description of a suspect provided that the individual stopped matches the description and was found within close geographical and temporal proximity of the reported crime. People v. Holland, 4 A.D.3d 375 (2004) **(11 Board Review)**

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **Exonerated**.

Allegation (C) Discourtesy: Police Officer Asim Karim spoke discourteously to § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Asim Karim did not obtain medical treatment for § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Asim Karim threatened to remove § 87(2)(b) to the hospital.

Allegation (F) Abuse of Authority: Police Officer Viktoria Bibolova did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) **(01 Board Review)** stated that after he was removed to the 71st Precinct stationhouse by PO Thimote and PO Lancaster, he was brought to the holding cell area. As PO Thimote and PO Lancaster prepared to lodge § 87(2)(b) in the holding cells, PO Karim entered the area. § 87(2)(b) asked who his arresting officer was. PO Thimote and PO Lancaster escorted § 87(2)(b) into the holding cells, and left the area. § 87(2)(b) told PO Karim that he had § 87(2)(b), and PO Karim responded, “Oh you want to beat up old men? What type of fucking guy are you?” PO Karim further told § 87(2)(b) that he would “take care of it,” meaning getting § 87(2)(b) medical attention, and stated that he did not have time to “fucking” babysit § 87(2)(b). PO Karim then left the holding cell area. For approximately thirty minutes, § 87(2)(b) yelled for PO Karim to return to the holding cell area. PO Karim entered the area, and § 87(2)(b) stated again that he wanted to go to the hospital. PO Karim told § 87(2)(b) that if he kept yelling, he would

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have ESU come to take him to a mental facility for a psychological evaluation. PO Karim further stated that he would “take care of it,” and left the holding cell area. § 87(2)(b) never received medical attention, and was not able to take his prescribed kidney medication that night.

PO Thimote **(04 Board Review)** and PO Lancaster **(05 Board Review)** stated that they did not hear PO Karim state, “Oh you want to beat up old men? What type of fucking guy are you?” and did not hear PO Karim tell § 87(2)(b) that he did not have time to “fucking” babysit him. PO Thimote and PO Lancaster did not otherwise hear PO Karim speak discourteously to § 87(2)(b). PO Thimote and PO Lancaster did not hear § 87(2)(b) ask for medical attention, and did not hear PO Karim tell § 87(2)(b) that he would call ESU to have him removed for a psychological evaluation. PO Thimote and PO Lancaster did not otherwise hear PO Karim threaten to have § 87(2)(b) removed to the hospital.

PO Karim **(03 Board Review)** stated that § 87(2)(b) was removed to the 71st Precinct stationhouse by PO Thimote and PO Lancaster. PO Karim next saw § 87(2)(b) when PO Thimote and PO Lancaster were preparing to lodge him in the holding cells. PO Thimote and PO Lancaster were removing the strings from § 87(2)(b)'s clothing and shoes. § 87(2)(b) looked at PO Karim and called him his arresting officer. PO Karim did not respond. After § 87(2)(b) was lodged in the holding cells, PO Karim, PO Thimote, and PO Lancaster left the room. PO Karim later returned to the holding cells because he was alerted by an officer that § 87(2)(b) mentioned medical attention. PO Karim did not recall which officer told him this. PO Karim went back to the holding cells, and § 87(2)(b) stated that he “may” need to go to the hospital because he needed to take a prescribed medication. PO Karim did not recall what the medication was for. PO Karim told § 87(2)(b) that PO Bibolova was his arresting officer, and that he would alert her of this. PO Karim left the holding cells, and told PO Bibolova that § 87(2)(b) had told him he might need to go to the hospital. PO Karim left for the night following that conversation. The following day, PO Bibolova informed him that § 87(2)(b) had not said anything to her about going to the hospital.

PO Bibolova **(02 Board Review)** stated that while she was completing paperwork regarding § 87(2)(b)'s arrest, PO Karim told her that § 87(2)(b) had told him that he may need to go to the hospital. PO Bibolova went to speak to § 87(2)(b) in the holding cells and asked him if he needed medical attention. § 87(2)(b) responded that his shoulder was in pain, but that he was fine. PO Bibolova responded that she was next door, and that if he changed his mind, to alert her.

Body worn camera footage from PO Lancaster and PO Thimote is largely identical, because the officers transported § 87(2)(b) to the 71st precinct station house together, and lodged § 87(2)(b) in the holding cells together. Body worn camera footage from PO Lancaster (labeled below as Snagit2) **(14 Board Review)** shows PO Lancaster and PO Thimote walking § 87(2)(b) to the holding cell area, and lodging him in the holding cells. The video is 7:02 long. At :48 seconds, § 87(2)(b), PO Lancaster, and PO Thimote enter the holding cell area. At 5:59, PO Karim enters the holding cell area. The remaining video does not show conversation between § 87(2)(b) and PO Karim, and does not capture any discourtesies, or discussion about medical attention, or being removed to the hospital. The video ends when the door to the holding cell is closed behind § 87(2)(b) and does not show the officers exit the holding cell area.



Snagit2.mp4

Body worn camera footage from PO Karim (labeled below as Snagit3) **(15 Board Review)** shows him enter the holding cell area. § 87(2)(b) PO Thimote, and PO Lancaster are standing outside of the holding cells, and § 87(2)(b) is removing the string from his clothing. The footage does not capture any discourtesy, or discussions about medical attention, or being removed to the hospital. The video ends when the door to the holding cell is closed behind § 87(2)(b) and does not show the officers exit the holding cell area.



Snagit3.mp4

§ 87(2)(g)
 § 87(2)(g)
 § 87(2)(g)
 § 87(2)(g). Therefore, it is recommended that **Allegation C, Allegation D, and Allegation E** be closed as **unsubstantiated**.

§ 87(2)(g)
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§ 87(2)(g)
 § 87(2)(g)

§ 87(2)(g)
 § 87(2)(g)
 Therefore, it is recommended that **Allegation F** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- PO Bibolova has been a member of service for two years, and does not have any previous allegations.
- PO Karim has been a member of service for four years, and has four previous allegations with no substantiations § 87(2)(g).
- § 87(2)(b) **(12 Board Review)** has filed four previous CCRB complaints. One was closed as a duplicate, and § 87(2)(b) complainant uncooperative.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 § 87(2)(b)

- On April 20, 2018, a Notice of Claim Inquiry returned negative results from the NYC Comptroller's Office **(07 Board Review)**.

Squad No.: 3

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date